

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-09
QVC, INC. AND CORNERSTONE BRANDS, INC.
v.
OCEAN NETWORK EXPRESS PTE. LTD.

JOINT STATUS REPORT

Complainants QVC, Inc. and Cornerstone Brands, Inc. (collectively “QVC” or “Complainants”) and Respondent Ocean Network Express Pte. Ltd. (“ONE” or “Respondent”) (QVC collectively with ONE, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report to further inform the Presiding Officer about the current progress of discovery and the need to extend certain deadlines in the Scheduling Order. See Scheduling Order, FMC Docket 25-09, Doc. No. 18.

Procedural history:

In accordance with the Scheduling Order, the Parties exchanged initial requests for production of documents (“RFPs”) and electronically stored information (“ESI”), and interrogatories. The Parties also served their respective objections and initial responses to the RFPs and interrogatories on each other.

Having met and conferred, the Parties also agreed upon a proposed Protective Order regarding treatment of confidential documents and information exchanged and used in this case. The Parties jointly filed a motion for the entry of this Protective Order on October 16, 2025.

Concurrently, the Parties agreed upon a Protocol Regarding ESI and executed same on October 15, 2025. The Protocol Regarding ESI addressed, among other things, custodians of potentially relevant documents and search terms to be applied to potentially relevant documents.

Progress of the Parties regarding Discovery:

Having proceeded with the initial processing of documents following the Parties' agreement on the Protocol Regarding ESI, Complainant's database of potentially responsive documents currently contains approximately 0.5 terabytes of data, which is estimated to represent approximately 1.5 million documents. There have been technical issues that caused delay. Despite working diligently, data is still being processed. After this initial database has been electronically searched and narrowed, a first level of review can be started.¹ This task is expected to take a significant amount of time and will require that productions be made on a rolling basis.

Meanwhile, after applying the respective search terms in the Protocol Regarding ESI, Respondent initially collected a database of 1.9 million potentially responsive documents. Respondent reconsidered the ESI search terms, determined that two sets appeared to result in capturing an arguably overbroad selection of data, and approached Complainant about narrowing the ESI search terms applicable to Respondent's data. Given that the US government shutdown prevented the timely determination of whether the search terms were in fact overboard, in the interest of making progress and trying to comply with the tight deadlines set out in Scheduling Order, the Parties agreed to qualify these two sets of search terms and reserve their rights and defenses. The result is still a set of over 850,000 potentially responsive documents. Respondents have already started their first level of review process.

¹ By "first level of review," we mean that potentially responsive documents based on the Parties' written discovery requests must be reviewed for responsiveness, confidentiality, and privilege before they are prepared for production.

Based on feedback from each of the third-party vendors the Parties are relying on for the collection, initial electronic search, and hosting of data, the Parties expect the first level of review for responsiveness, confidentiality, and privilege to take between 5 to 8 more weeks before documents can begin to be produced on a rolling basis. This means the Parties do not expect to be physically able to produce documents to each other until as early as December 12th or as late as December 26th. This is all without regard for whether the volume of data, which must be searched, could grow based upon initial productions and further discussions between the Parties; and does not take into account the time needed by the Parties to review the documents produced to each other.

Accordingly, the Parties could not discuss and submit unresolved disputes concerning the initial RFPs and interrogatories by the October 28th deadline. The Parties were also unable to substantially complete the production of documents and ESI in response to initial RFPs by the November 17th deadline. Since both Parties are dealing with essentially the same complications, they continue to work cooperatively and have no dispute to submit at this time.

Depositions:

The current deadline for the completion of fact depositions is December 15, 2025. As explained above, the Parties anticipate that they will be starting the production of documents responsive to the initial document demands at about that time, i.e., middle to late December 2025. The Parties will require additional time to review the documents that have been produced to them prior to conducting depositions. The Parties will confer regarding the scope and timing for depositions when the status of the necessary document production is more certain.

Previously, the Parties reported that: “their initial disclosures have already identified 14 potential fact witnesses. The Parties also expect expert testimony of one liability and one damage

expert per party. That alone will bring the number of witnesses to be scheduled and deposed to 18.” Amended Joint Proposed Scheduling Order, FMC Docket 25-09, Doc. No. 17. The Parties have since exchanged responses to interrogatories. In those responses, as many as 22 potential party witnesses have been collectively identified. Another 7 third-party witnesses may also need to be deposed. In short, the Parties’ initial expectations have already been exceeded by an additional 11 people.

Scheduling Order:

Again, the Parties acknowledge that the prompt resolution of claims and disputes arising under the statutes administered by the Commission is a laudable goal, one which the deadlines for issuance of initial and final decisions are intended to achieve, and that scheduling orders are an important part of this process. However, the sheer volume of potential evidence to be considered constitutes good cause and can necessitate the extension of deadlines for completion of discovery to allow the Parties adequate and reasonable to develop their claims and defenses. There are also policy considerations which favor allowing sufficient time for a full development of the evidentiary record before an agency. *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines – Possible Violations of Section 10(a)(1) of the Shipping Act of 1984*, 29 S.R.R. 1376, 1377 (ALJ 2002) (policy and responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of fairness between the parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission).

Under these circumstances, the Parties intend to submit another Joint Status Report and a motion to extend the scheduling deadlines on or by the current December 1, 2025 deadline. At that time, the Parties may also request a remote conference with the Presiding Officer as soon

thereafter as is convenient to discuss the status of the discovery process and how the Discovery Schedule can be amended to realign with the directives of the Commission and the needs of the Parties. For the time being, the Parties submit the following analysis of the current Discovery Schedule for informational purposes only:

Event	Scheduling Order Deadline	Currently Anticipated Time of Completion
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	9/15/2025	Completed
Parties to serve objections and initial responses to initial RFPs	10/15/2025	Completed
Parties to serve objections and initial responses to initial interrogatories	10/15/2025	Completed
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	10/28/2025	TBD
Substantial completion of productions of documents and ESI in response to initial RFPs	11/17/2025	3/9/2026
Joint Status Report regarding discovery	12/01/2025	12/01/2025
Last day to file motion for extension of scheduling deadlines	12/01/2025	12/01/2025
Complete depositions of fact witnesses	12/15/2025	4/24/2026
Last day to serve interrogatories, requests for admission, and RFPs	12/15/2025	4/24/2026
Disclosure of initial expert reports, if any	12/23/2025	5/26/2026
Disclosure of rebuttal expert reports, if any	1/06/2026	6/9/2026
Last day to respond to interrogatories, requests for admission, and RFPs	1/12/2025	6/15/2026
Close of fact discovery	1/12/2025	6/15/2026
Complete expert depositions and all discovery	1/12/2026	6/30/2026
Complainant’s initial brief, proposed findings of fact, and appendix	2/11/2026	7/31/2026
Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	3/13/2026	8/31/2026
Complainant’s reply and responses to proposed findings of fact	3/27/2026	9/14/2026

We thank the Commission in advance for its understanding and patience. If there are any questions, please do not hesitate to contact the undersigned.

Dated: November 20, 2025

Respectfully submitted,

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